

8.	25CV2140	LIBERTY MUTUAL FIRE INSURANCE COMPANY, A CORPORATION VS. ROBERT JOSEPH AICHELE
MOTION TO ENFORCE SETTLEMENT AGREEMENT AND ENFORCE JUDGMENT		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Plaintiff, Liberty Mutual Fire Insurance Company ("Plaintiff"), seeks to enforce the settlement agreement pursuant to CCP §§ 664.6 and 187. Defendant, Robert Joseph Aichele ("Defendant"), filed an Opposition on August 31, 2026. Plaintiff's Reply was filed on September 3, 2026.

The Parties entered into a Stipulation for Entry of Judgment and Installment Payments ("Stipulation") on March 3, 2026, which provided Judgment was stayed and Defendant agreed to make installment payments to Plaintiff in the amount of \$10,000.00 on or before March 2, 2026, \$140.00 on or before the 21st of each month from March 21, 2026, to January 21, 2029, and \$100.00 on or before February 21, 2029, totaling \$15,000.00 in payments.

Plaintiff alleges that Defendant's insurance carrier paid the \$10,000.00 required by the Stipulation, but Defendant has made no further payments. Plaintiff argues pursuant to paragraphs 1, 5, 6, 7, and 8 of the Stipulation, Plaintiff is entitled to cause judgment to be entered in the amount of \$23,080.67 in principal, plus interest (\$1,049.70) at the rate of 5% per annum on said principal sum from August 18, 2025, through July 16, 2026, less credit for all payments made prior to default (\$10,000.00), plus court costs of \$435.00, for a total of \$14,565.37, with interest continuing to accrue thereafter at the rate of \$3.16 per day.

Defendant asserts that upon learning of the underlying motion, he paid \$940.00 to Plaintiffs which represented \$100.00 over the amount owed for the 6 months between March 21, 2026, and August 31, 2026. Defendant relies upon Code of Civil Procedure § 3275 and requests the Court relieve him of forfeiture, as the breach was due to a misunderstanding, and not due to a grossly negligent, willful, or fraudulent breach of duty. Defendant contends that due to inadvertent misunderstanding and mistake, he was under the belief that Plaintiff's attorney of record, Todd Haines, would be issuing a bill for the installment payments which would provide the correct address to mail payments to. Defendant believed the lack of billing statements was due to a delay in getting the payment account set up, as is customary with setting up installment payments. Defendant requests the Court permit the Stipulation to proceed under the same terms.

Defendant argues that Plaintiff is a multi-billion dollar company who cannot show any actual harm for his inadvertent breach, totaling \$840.00. On the other hand, Defendant is on permanent disability with limited income that relies on Social Security Disability. A grant of Plaintiff's Judgment would push him into financial ruin and likely homelessness.

Plaintiff argues that if the Court is inclined to relieve Defendant of the forfeiture he otherwise incurred under paragraph 5 and permit him to continue on the original discounted installment schedule, Defendant should be required to reimburse Plaintiff the \$510.00 in attorney's fees and costs Plaintiff would not have incurred but for Defendant's default in addition to Defendant's continued, timely performance of the installment schedule set forth in the Stipulation.

Whenever, by the terms of an obligation, a party thereto incurs a forfeiture, or a loss in the nature of a forfeiture, by reason of his failure to comply with its provisions, he may be relieved therefrom, upon making full compensation to the other party, except in case of a grossly negligent, willful, or fraudulent breach of duty. Code of Civil Procedure § 3275.

The Court finds that as Defendant has remitted payment of the outstanding installment payments due, relief is available pursuant to Code of Civil Procedure § 3275 contingent upon the payment of the \$510.00 incurred in preparing and filing the underlying motion due to Defendant's breach. Defendant is ordered to remit to Plaintiff \$510.00 within thirty (30) days of the Court's order and to make timely payments consistent with the Stipulation. Plaintiff's motion is denied without prejudice to any future breach or failure to comply with the Court's Order.

TENTATIVE RULING #8:

PLAINTIFF'S MOTION IS DENIED WITHOUT PREJUDICE TO ANY FUTURE BREACH OR FAILURE TO COMPLY WITH THE COURT'S ORDER. DEFENDANT IS ORDERED TO PAY TO PLAINTIFF THE TOTAL OF \$510.00 WITHIN THIRTY (30) DAYS OF THE COURT'S ORDER AND TO MAKE TIMELY PAYMENTS CONSISTENT WITH THE STIPULATION.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.